

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 01/20/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. on the court day before the hearing if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L24-00982
CASE NAME: WELLS FARGO BANK, N.A. VS. FRANCES ADAMI
*HEARING ON MOTION IN RE: TO VACATE JUDGMENT AND OF NONAPPEARANCE
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a request to set aside and dismiss without prejudice the Judgment – entered August 1, 2025 - because the Defendant filed for bankruptcy on July 10, 2025.

Analysis

A party can move to set aside a judgment that is otherwise void under Section 473(c) of the Code of Civil Procedure (CCP).

When bankruptcy proceedings have begun in federal court, the superior court lacks jurisdiction, thus, any judgment rendered by the superior court would be void.

Further, a plaintiff can request voluntary dismissal of an action, before trial, under Section 581(b) of the CCP.

Disposition

Plaintiff's motion is granted.

Plaintiff to file Order.

2. 9:00 AM CASE NUMBER: L24-02704

CASE NAME: LVNV FUNDING LLC VS. NICOLE MUNOZ

***HEARING ON MOTION IN RE: MOTION AND MOTION TO VACATE DEFAULT JUDGMENT**

FILED BY: MUNOZ, NICOLE

TENTATIVE RULING:

Background

Defendant filed a Motion to Vacate Default Judgment (Motion) on December 18, 2025, with an accompanying proof of service by mail, filed on December 22, 2025, indicating service on December 19, 2025, on Plaintiff who has a mailing address out of state. The hearing is scheduled for January 20, 2026.

The Motion is unopposed, yet the service does not appear to be timely. Section 1005 of the CCP requires notice of 16 court days for motions, and Section 1013 requires an additional 10 calendar days for mail service on parties outside of California. This would leave January 26, 2026, as the earliest date this motion could be heard (January 24th, which is a Saturday, is technically the first day after 16 court days and 10 calendar days).

Disposition

The Motion will be continued approximately 30 to 60 days to enable Plaintiff to respond.

3. 9:00 AM CASE NUMBER: L24-05975

CASE NAME: LOAN ASSET ISSUER LLC SERIES 2021 M 2 VS. CRISTINA PITA

***HEARING ON MOTION IN RE: FOR ORDER DEEMING EACH REQUEST FOR ADMISSIONS ADMITTED; AND REQUEST FOR SANCTIONS**

FILED BY: LOAN ASSET ISSUER LLC SERIES 2021 M 2

TENTATIVE RULING:

Plaintiff filed, on November 3, 2025, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion). Plaintiff also seeks sanctions in the amount of \$60. Plaintiff attached a proof of service.

No response has been filed by the Defendant.

Background

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of